

The Recycled Plastics Manufacture and Usage Rules, 1999

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Union of India - Act

The Recycled Plastics Manufacture and Usage Rules, 1999

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Rule THE-RECYCLED-PLASTICS-MANUFACTURE-AND-USAGE-RULES-1999 of 1999

Published on 2 September 1999

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The Recycled Plastics Manufacture and Usage Rules, 1999

Published vide Notification Gazette of India, Extraordinary, Part 2, Section 3 (ii), dated 2nd September, 1999 (w.e.f. 2nd September, 1999).

S.O. 705 (E), dated 2nd September, 1999. - In exercise of the powers conferred by Clause (viii) of sub-section (2) of Section 3 read with Section 25 of the Environment (Protection) Act, 1986, the Central Government hereby notifies the rules for the manufacture and use of recycled plastics, carry bags and containers.

1.

Short title and commencement.

(a)

These rules may be called the Recycled Plastics Manufacture and Usage Rules, 1999.

(b)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In this rules, unless the context otherwise requires,-

(a)

"Act" means the Environment (Protection) Act, 1986;

(b)

"Foodstuffs" means ready-to-eat food and food products, fast food, processed and cooked food in liquid, powder, solid or semi-solid form;

(c)

"Vendor" means person who sells foodstuffs as defined above packaged and stored in plastic carry bags and containers.

3.

Prescribed Authority.

(a)

The prescribed authority for enforcement of the provisions of these rules related to manufacture and recycling shall be the State Pollution Control Boards in respect of States and the Pollution Control Committees in respect of Union Territories;

(b)

The prescribed authority for enforcement of the provisions of these rules related to the use, collection, segregation, transportation and disposal shall be the District Collector/Deputy Commissioner of the concerned district where no such Authority has been constituted by the State Government/Union Territory administration under any law regarding non-biodegradable garbage.

4.

Prohibition of usage of carry bags or containers made of recycled plastics.

- No vendor shall use carry bags or containers made of recycled plastics for storing, carrying, dispensing, or packaging of foodstuffs.

5.

Conditions of manufacture of carry bags and containers made of plastics.

- Subject to the provisions of Rule 4, any person may manufacture carry bags or containers made of plastics if the following conditions are satisfied, namely:-

(a)

Carry bags and containers made of virgin plastic shall be in natural shade or white;

(b)

Carry bags and containers made of recycled plastic and used for purposes other than storing and packaging foodstuffs shall be manufactured using pigments and colourants as per IS : 9833 : 1981 entitled "List of pigments and colourants for use in plastics in contact with foodstuffs, pharmaceuticals and drinking water".

6.

Recycling.

- Recycling of plastics shall be undertaken strictly in accordance with the Bureau of Indian Standards specification : IS : 14534 : 1998 entitled "The Guidelines for Recycling of Plastics".

7.

Marking/codification.

- Manufacturers of recycled plastic carry bags having printing facilities shall code/mark carry bags and containers as per Bureau of Indian Standard Specification : IS : 14534 : 1998 entitled "The Guidelines for Recycling of Plastics" and the end product made out of recycled plastics shall be marked as "recycled" along with the indication of the percentage of use of recycled material. Other manufacturers, who do not have printing facilities, shall comply with the condition within one year of publication of these rules. Manufacturers shall print on each packet of carry bags as to whether these are made of "recycled material" or of "virgin plastic".

8.

Thickness of carry bags.

- The minimum thickness of carry bags made of virgin plastics or recycled plastics shall not be less than 20 microns.
- 9.

Self regulation by certain persons.

- Without prejudice to the provisions contained in Rule 3, the Plastics Industry Association, through their member units, shall undertake self regulatory measures.

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